

Court No. - 3

Case :- WRIT - C No. - 18351 of 2022

Petitioner :- M/S Shiv Bhog Aanta Mill/Chakki

Respondent :- Managing Director, U P Power Corporation Ltd. And Another

Counsel for Petitioner :- Vijay Tripathi

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

Heard learned counsels for the parties.

This writ petition has been filed praying for the following reliefs:

- a) Issue a writ order or direction in the nature of certiorari quashing impugned revenue assessment order/recovery order dated 16.03.2022 issued by Executive Engineer, Dachhinanchal Vidyut Vitran Nigam Limited, Agra/respondent no.2.
- b) Issue a writ order or direction in the nature of mandamus directing the respondents to restore the electricity connection which is disconnected on 20.11.2021.

Learned counsel for the respondent No 2/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed off** giving liberty to the petitioner to submit his/her objection under ***Para 6.8 of U.P. Electricity Supply Code, 2005*** before the respondent No.2 within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No. 2 in accordance with law, expeditiously, preferably within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 6.7.2022

T.S.